

Athens, 29-01-2024

No. Prot. 427

DECISION 49/2023

The Hellenic Data Protection Authority convened in plenary session at its headquarters, at the invitation of its President, on Tuesday, June 13, 2023, in order to examine the case referred to below in the background of this decision. Present were the President of the Authority, Konstantinos Menoudakos, and the regular members of the Authority Spyridon Vlachopoulos, Konstantinos Lamprinoudakis, Christos Kalloniatis, Aikaterini Iliadou, Grigorios Tsolias, the alternate member of the Authority Nikolaos Libos, replacing the regular member Charalambos Anthopoulos, who was absent despite being duly summoned, and the alternate member of the Authority Maria Psalla, as rapporteur without voting rights. Also present without voting rights were Anastasia Tritaki, legal auditor – lawyer, as assistant rapporteur, and Irini Papageorgopoulou, employee of the administrative affairs department, as secretary.

The Authority took into account the following:

With the complaint No. Prot. G/EIS/5995/21-9-2021 and its supplementary documents, A (hereinafter referred to as the complainant), in his capacity as a candidate for a first-level professor position at the School of X (EKPA) based on the announcement No. ..., alleges that, during the election process for filling the position, the selection committee processed his personal data, for which, according to his claims, there was no prior consent or notification to him.

Specifically, according to the complainant, the selection committee, in order to verify the supporting statements of his candidacy, collected his personal data from third-party sources. Subsequently, on ..., the committee's report was posted on the website Apella, in which the findings of the aforementioned processing are detailed, resulting in the disclosure of the complainant's personal data, which were collected through the above process, to a wider circle of recipients.

Following this, the complainant sent a letter on ... to EKPA addressed to its Data Protection Officer (DPO), protesting the above, requesting to be informed about the manner of acquisition of a specific document that was used for the evaluation of his candidacy and exercising the right to restrict the processing of his data under Article 18 GDPR, as well as the right to object to the processing of his data under Article 21 GDPR. In this regard, in his response on ..., the DPO of EKPA pointed out that the processing of the complainant's personal data took place based on the provisions of Article 4 par. 4 of Law 4405/2016, according to which the search for recommendation letters to assist the work of the selection committee is permitted without the candidate's consent, proportionally applying in this case for the search for information in public sources, specifically in university online sources and on the Diavgeia website. Therefore, according to what is stated in the above response, the legal basis for the processing is Article 6 par. 1 (c) of the GDPR, without requiring the consent of the data subject, and consequently, Article 21 GDPR regarding objection to the processing of data cannot be applied, as its application is not provided for in the case of processing based on Article 6 par. 1 (c) of the GDPR. On ..., the complainant again addressed the DPO of EKPA, disputing the possibility of processing his data based on the provisions of Article 4 par. 4 of Law 4405/2016, as he argued that the explicit possibility of using third-party sources beyond recommendation letters is not provided. He also resubmitted a request for information regarding the manner of acquisition of a specific document that was used for the evaluation of his candidacy. In his response on ..., the DPO of EKPA reiterated the position regarding the application of Article 4 par. 4 of Law 4405/2016 as the legal basis for the processing and informed the complainant about the possibility of submitting a complaint to the Authority.

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The Authority, in the context of examining the aforementioned complaint, sent to the National and Kapodistrian University of Athens (hereinafter referred to as "the University") the document with reference number Γ/ΕΞ/2299/13-10-2021 requesting opinions regarding the matters mentioned in the above complaint. Subsequently, the University responded to the above with its document numbered ... (reference number Γ/ΕΙΣ/7387/11-11-2021), clarifying that, given that the complainant had not

uploaded the necessary supporting documents on the Apella website for the verification of the statements in his curriculum vitae and his memorandum, in order for the Evaluation Committee to express its opinion on whether the complainant meets the legal qualifications required for the position, it proceeded to search for information available only from public sources, specifically from the following: 1) National Printing Office (2 files) 2) Diavgeia (1 file) 3) University of Cyprus website (4 files) 4) Birkbeck University website (4 files) and 5) Bank for International Settlements (1 file). Furthermore, the University emphasized that the above search took place in accordance with the provisions of Article 19 of Law 4009/2011 paragraph 4 subparagraph (c) (Government Gazette A' 195), as amended by Article 4 paragraph 4 of Law 4405/2016 (Government Gazette A' 129), in order "a) to analyze and evaluate the work and personality of each candidate, expressing a judgment on their contribution to the advancement of science, b) to express its opinion on whether the candidates meet the legal qualifications required and specifically regarding the relevance of the subject area of the position to be filled with the subject area of the doctoral dissertation, as well as the relevance of their scientific, teaching, clinical, or artistic work to the subject area of the position to be filled, c) if more than one candidate is assessed, to proceed with their comparative and evaluative ranking," while in other respects, the respondent refers to the response of the Data Protection Authority (DPA), which was sent to the complainant following his letter of complaint.

Following the examination of the file's elements, the Authority sent the document numbered Γ/ΕΞ/967/28-04-2022 calling the respondent to a hearing and the document numbered Γ/ΕΞ/970/28-04-2022 to the complainant, in order to attend, via videoconference, a hearing before the Authority's Department on 4/5/2022 at 11:00 a.m., regarding the discussion of the aforementioned complaint. The discussion was postponed to 1/6/2022, during which it took place via videoconference. In this session, the complainant A attended with his attorney Antonios Vasilopoulos (with Bar Association number ...), while on behalf of the respondent attended B, Vice-Rector for Academic Affairs and Student Welfare of the University, C, Chair of Department X, D, member of the Three-Member Evaluation Committee, Emeritus Professor of Department X, Charalambos Pallas, attorney for the University (with Bar Association number ...), and E on behalf of Space Hellas, Data Protection Officer of the University.

Both parties, after orally presenting their views, were granted a deadline during this session to submit memoranda to further support their claims, which they submitted in a timely manner. During the aforementioned hearing on 1/6/2022, as well as with the document numbered Γ/ΕΙΣ/8030/16-06-2022 following the hearing, the complainant reiterated the claims he had previously raised before the Authority. The respondent, with the document numbered Γ/ΕΙΣ/8060/17-06-2022 following the hearing, argued, among other things, that the Evaluation Committee, having a legal obligation under Article 19 paragraph 4 subparagraph (c) of Law 4009/2011 (Government Gazette A' 195), as amended by Article 4 paragraph 4 of Law 4405/2016 (Government Gazette A' 129), to provide a fully reasoned and substantiated judgment regarding the candidates, may also take into account other elements regarding the work or personality of the candidate that it may know from other sources or its personal perception, referring, by way of example, to the Council of State 2199/2020 (Third Section) Decision. Furthermore, it reiterated that the Evaluation Committee consulted only public sources, which are accessible to every citizen and which provide "evidence of accuracy." It additionally stated that the complainant was informed within a reasonable time about the search for information from the aforementioned sources, in accordance with the provisions of Article 14 paragraph 3 subparagraph (a) of the GDPR.

Regarding the satisfaction of the rights exercised by the complainant, the respondent reiterated the claims it had previously raised before the Authority regarding the right to object under Article 21 of the GDPR, while also arguing that, since the right to restrict processing under Article 18 of the GDPR was exercised in conjunction with the right to object under Article 21 of the GDPR, there is no case...

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application of it. Finally, it argued that the complainant received a clear and specific response regarding the above from the Data Protection Officer of the University.

With Decision 62/2022 of the Authority (with reference number Authority G/EX/3074/01-12-2022), the examination of the complaint in question was referred by the Department to the Plenary of the Authority, in accordance with Articles 8 paragraph 1 and 4 paragraph 1 item i of the Operating

Regulation of the Authority (Government Gazette B' 879), due to broader interest.

The Authority again summoned both parties for a hearing in its Plenary by sending the reference number Authority G/EX/170/17-01-2023 summons for hearing to the respondent and the reference number Authority G/EX/169/17-01-2023 to the complainant, in order to attend, via videoconference, a hearing before the Plenary of the Authority on 24/1/2023 at 11:00 a.m., regarding the discussion of the aforementioned complaint.

At the aforementioned session, the complainant A was present with his attorney Antonios Vasilopoulos (with Bar Association ID ...), while on behalf of the respondent were present B, Vice-Rector for Academic Affairs and Student Welfare of EKPA, D, member of the Three-Member Advisory Committee, Emeritus Professor of Department X, Charalampos Pallas, attorney for EKPA (with Bar Association ID ...), and E, on behalf of Space Hellas, Data Protection Officer of EKPA.

Both parties, after orally presenting their views, were given a deadline during this session to submit written statements for further support of their claims, which both submitted in a timely manner.

During the hearing on 24/1/2023, as well as with the reference number Authority G/IN/1042/10-02-2023 following the hearing, the complainant reiterated the claims he had previously made before the Authority and argued that in drafting the advisory report, the Advisory Committee violated the term of participation of the electronic service Apella, according to which users are prohibited from using it for the transmission of data that contain or imply false statements regarding the identity of the user/member or misleading statements regarding the relationship and/or cooperation with any other legal or natural person. The complainant also argued that although the Apella system is a closed system, members entering it may become aware of the aforementioned report.

The respondent, during the hearing and with the reference number Authority G/IN/1005/09-02-2023 following the hearing, reiterated the claims he had previously made before the Authority and again cited the relevant case law of the Council of State (indicatively Council of State 2199/2020 (Third Chamber) Decision), according to which the advisory committee may take into account other elements regarding the work or personality of the candidate that it may know from other sources or its personal perception. He pointed out that the Advisory Committee limited itself to checking only certain elements that the complainant himself had stated in his curriculum vitae, through publicly accessible sources, some of which the complainant had demonstrated himself through his curriculum vitae. Furthermore, the respondent pointed out that ultimately the electoral body did not base its judgment regarding the candidacy of the complainant on these elements, but only on the elements that the complainant himself had posted on Apella, concluding that his scientific and research work was not relevant to the subject matter of the position in question.

Moreover, the respondent argued that only certain persons designated by law have access to the Apella system, while the terms of the system state that: "By participating in the Electronic Service 'Apella' and accepting these specific terms, the user of the service responsibly declares that he accepts the use and processing of his personal data for the purpose of filling a declared position of election/promotion/permanence/renewal of term."

Regarding the notification of the complainant and the satisfaction of the rights exercised by the complainant regarding opposition and restriction, the respondent reiterated the claims he had previously made before the Authority and pointed out that the exercise of rights under the GDPR demonstrates that the complainant was aware of the processing of his data.

The Authority, after examining the elements of the file and what emerged from the hearing before it and the written statements of the parties, having heard the

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reporter and the clarifications from the assistant reporter, who attended without voting rights, following thorough discussion,

CONSIDERED IN ACCORDANCE WITH THE LAW

1. Whereas, from the provisions of Articles 51 and 55 of the General Data Protection Regulation 2016/679 (GDPR) and Article 9 of Law 4624/2019 (Government Gazette A' 137), it follows that the Authority has the competence to supervise the implementation of the provisions of the GDPR, Law 4624/2019, and other regulations concerning the protection of individuals from the processing of personal data. Specifically, from the provisions of Articles 57(1)(f) of the GDPR and 13(1)(g) of Law

4624/2019, it follows that the Authority has the competence to address the complaint of A against the National and Kapodistrian University of Athens, as it pertains to the search, collection, correlation, and disclosure of the personal data of the complainant, which constitute forms of non-automated processing of personal data, within the meaning of Article 4(2) of the GDPR, while these data are included in the evaluation report of candidates, that is, in a filing system within the meaning of Article 4(6) of the GDPR. Therefore, this is processing subject to the regulatory scope of Articles 2(1) of the GDPR and 2 of Law 4624/2019.

2. Whereas, according to the provisions of Article 4(7) of the GDPR, the data controller is defined as “the natural or legal person, public authority, agency, or other body which, alone or jointly with others, determines the purposes and means of the processing of personal data; where the purposes and means of such processing are determined by Union law or the law of a Member State, the controller or the specific criteria for its designation may be provided for by Union law or the law of a Member State.” According to the EDPB Guidelines 07/2020 regarding the concepts of the controller and the processor, the operational criterion is fundamental for determining the data controller. That is, the data controller is the one who determines the purpose and/or at least the essential elements of the means of processing (the determination of the objectives and the means is equivalent to determining, respectively, the “why” and the “how” of certain processing activities). Furthermore, according to the aforementioned Guidelines, in cases where the law imposes a duty or obligation on someone to collect and process certain data, the purpose of the processing is usually determined by law, and the data controller will be the one designated by law to fulfill that purpose, that public duty. Given that in this case the announcement No. ... (Government Gazette ...) was issued under the responsibility of the National and Kapodistrian University of Athens for the purpose of filling a position at the School of X, the National and Kapodistrian University of Athens is the data controller for the processing that takes place for the evaluation of candidates with the aim of filling the aforementioned position. Furthermore, regarding the disclosure of the data that took place through the posting in the Apella system, according to Article 1 of Ministerial Decision Φ.122.1/1137/145793/B2 (Government Gazette B' 2619/16-10-2013), the Apella system has been established under the supervision of the Ministry of Education and Religious Affairs, with the managing body being the National Network for Research and Technology S.A., while Article 3(8)(a) of Ministerial Decision Φ.122.1/6/14241/Z2 (Government Gazette B' 225/31-1-2017) stipulates that higher education institutions, through their services, their secretariats, and designated responsible persons, bear exclusive responsibility for actions carried out through the information system and specifically for all stages that comprise the processes of election, promotion, renewal, or permanent appointment. According to these provisions, the National and Kapodistrian University of Athens is the data controller for the posting of the aforementioned acts in the Apella system.

3. Whereas Article 6(1)(c) of the GDPR regarding the lawfulness of processing states: “1. Processing shall be lawful only if and to the extent that at least one of the following applies: (...) (c) processing is necessary for compliance with a legal obligation to which the controller is subject.”

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obligation of the data controller, (...)”, while according to paragraph 3 of the aforementioned article: “The basis for the processing referred to in paragraph 1 points (c) and (e) is defined in accordance with: a) Union law, or b) the law of the Member State to which the data controller is subject. The purpose of the processing is determined in the said legal basis or, regarding the processing referred to in paragraph 1 point (e), it is the necessity of the processing for the fulfillment of a task carried out in the public interest or in the exercise of public authority vested in the data controller. (...)” According to Recital 41 of the GDPR, “Whenever this regulation refers to a legal basis or legislative measure, this does not necessarily require a legislative act approved by a parliament, subject to the requirements according to the constitutional order of the specific Member State. However, this legal basis or legislative measure must be formulated clearly and precisely, and its application must be predictable for individuals subject to it, in accordance with the case law of the Court of the European Union (the “Court”) and the European Court of Human Rights.”

4. Because Article 19 paragraph 4 point (c) of Law 4009/2011 (Government Gazette A' 195), as amended by Article 4 paragraph 4 of Law 4405/2016 (Government Gazette A' 129), as it was in force

at the time of the events, stipulates that: “The three-member advisory committee must, within an exclusive deadline of forty (40) days from its establishment and not earlier than twenty (20) days, submit an advisory report in which it must: a) analyze and evaluate the work and personality of each candidate, expressing a judgment on their contribution to the advancement of science, b) express its opinion on whether the candidates meet the qualifications required by law and specifically regarding the relevance of the subject matter of the position to be filled with the subject matter of the doctoral dissertation, as well as the relevance of their scientific, teaching, clinical, or artistic work to the subject matter of the position to be filled, c) if more than one candidate is assessed, to proceed with their comparative and evaluative ranking. The committee, in order to provide an accurate picture of each candidate, must analyze and assess their works, their scientific activity, and their other substantial qualifications. To assist its work, the advisory committee may request letters of recommendation from professors of equivalent higher education institutions abroad or researchers from abroad, in the same or related field of study as that of the position to be filled. The advisory report is communicated immediately after its submission to the members of the Electoral Body and the candidates under the responsibility of the President of the Department.”

5. Because from the provisions of Article 19 paragraph 4 point (c) of Law 4009/2011 (Government Gazette A' 195), as replaced by Article 4 paragraph 4 of Law 4405/2016 (Government Gazette A' 129) and in force at the time of the contested processing, it does not explicitly emerge the possibility or obligation of the advisory committee to seek, collect, and correlate information from third sources for the purpose of evaluating the candidacies, except for the possibility of seeking letters of recommendation, while such a possibility or obligation is not provided for either by the provisions of the Ministerial Decision No. Φ.122.1/6/14241/Z2 (Government Gazette B' 225/31-1-2017) titled “a) Procedure for the establishment of electoral bodies of higher education institutions, regulation of election and advancement issues for professors and serving lecturers, renewal and permanent appointment of temporary assistant professors, control of the legality of these processes and other issues related to the implementation of the provisions of Article 19 of Law 4009/2011 (A' 195), as in force, and Article 4 of Law 4405/2016 (A' 129). b) Development and operation of an electronic system for the integrated management of election and advancement processes for professors and serving lecturers, renewal and permanent appointment of temporary assistant professors, as well as the formation and maintenance of registers of internal and external members.”, nor in the provisions of the announcement No. 41378/1-10-2020 (Government Gazette C' 2071) of the National and Kapodistrian University of Athens, is there a provision for the possibility or obligation of the advisory committee to seek, collect, and correlate information from third sources during the evaluation stage of the candidacies.

6. However, as has been ruled by the Council of State (see Council of State G' 2199/2020), in the interpretation of the preceding, relevant content with the provision of Article 19 paragraph 4 point (c) of Law 4009/2011 (Government Gazette A' 195), the provision of Article 6 paragraph 1 point (G) of Law 2083/1992

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As it was in force at the time of the decision, the advisory committee and ultimately the electoral body, in order to provide an accurate picture of a candidate, must analyze and evaluate their works, scientific activity, and other substantial qualifications, without being obliged to necessarily analyze the entirety of the candidate's work or to adhere to a specific methodology or system, and is in no way prevented from considering, at its discretion, other elements regarding the candidate's work and personality that it may know from other sources or its personal perception. Furthermore, according to the European Court of Human Rights, restrictions on the exercise of the right to private life may be provided not only by law, in the formal sense of the term, but also by the established case law of the Supreme Courts, provided that the other conditions required by the case law of the ECHR for the validity of restrictions on the exercise of the rights guaranteed therein are met.

7. Because, in accordance with the above, in light of the obligation of the Advisory Committee to analyze and evaluate the work and personality of each candidate, in order to proceed with their comparative and evaluative ranking, in this case, the search, collection, and correlation of information from third sources during the evaluation of the complainant's candidacy took place in compliance with

the Advisory Committee's legal obligation as stipulated in Article 6(1)(c) of the GDPR.

8. Because, specifically regarding the disclosure of the complainant's data, which allegedly took place through the posting of the advisory report in the Apella system, it should likewise be accepted that this occurred in compliance with the Advisory Committee's legal obligation as stipulated in Article 6(1)(c) of the GDPR, since the posting was disclosed to those individuals who have access based on the provisions of Ministerial Decision F.122.1/6/14241/Z2 (Government Gazette B' 225/31-1-2017), according to which Article 3(1), as amended by Ministerial Decision F.122.1/86/83263/Z2/30-6-2020 (Government Gazette B' 2657/30.06.2020) states: "(...) Through this system, the registers of internal and external members of the Higher Education Institutions are compiled and maintained, applications for candidacy for positions that are announced are submitted, as well as applications for the renewal or permanent appointment of temporary assistant professors along with the necessary documentation for evaluation, and the acts governing the election processes, promotion of professors, and serving lecturers, as well as the processes for the renewal and permanent appointment of temporary assistant professors, and the regulatory framework governing the above processes are posted (...)."

Furthermore, according to Article 3(8)(b) and (c) of the same Ministerial Decision F.122.1/6/14241/Z2 (Government Gazette B' 225/31-1-2017): "b) The processes of election, promotion, renewal, or permanent appointment, as well as the acts and decisions described herein, are accessible to the competent services, to the secretariats of the Departments and Schools, to the responsible person of the Institution, to the candidates for the position, to the members of the General Assembly of Special Composition, and to the members of the Department Assembly, in accordance with the applicable provisions and the degree of their participation in these. Specifically, the members of the General Assembly of Special Composition may have access to the registers of internal and external members as well as to the acts and decisions described herein in which they participated. c) The announcements and the registers of internal and external members are accessible to all registered users of the information system."

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9. Considering the above, the Authority finds that the reported forms of processing (searching, collecting, correlating, and disclosing) of the personal data of the complainant occurred in compliance with the legal obligation of the respondent under Article 6(1)(c) of the GDPR.

10. Furthermore, regarding the right to object to the processing of personal data, Article 21 of the GDPR provides that: "1. The data subject shall have the right to object, at any time and on grounds relating to his or her particular situation, to processing of personal data concerning him or her which is based on Article 6(1)(e) or (f), including profiling based on those provisions. The controller shall no longer process the personal data unless the controller demonstrates compelling legitimate grounds for the processing which override the interests, rights, and freedoms of the data subject or for the establishment, exercise, or defense of legal claims. (...)". From the entirety of the file, it appears that the complainant first exercised the right to object with his letter dated 12/7/2021, while the respondent rejected the relevant request on 3/9/2021 on the grounds that the right to object under Article 21 of the GDPR cannot apply in this case, given that the processing of the data took place based on Article 6(1)(c) of the GDPR, and not the provisions of Article 6(1)(e) or (f). Given that, as stated above, the processing took place based on Article 6(1)(c) of the GDPR, there is no case for the application of the complainant's right to object, and thus, the reported refusal of the respondent is lawful.

11. Regarding the right to restrict processing, Article 18 of the GDPR concerning the right to restrict processing provides that: "1. The data subject shall have the right to obtain from the controller restriction of processing where one of the following applies: (a) the accuracy of the personal data is contested by the data subject, for a period enabling the controller to verify the accuracy of the personal data, (...) (d) the data subject has objected to processing pursuant to Article 21(1), pending the verification of whether the legitimate grounds of the controller override those of the data subject.". From the entirety of the complaint, it appears that the complainant first exercised the right to restrict the processing of his data with his letter dated 12/7/2021, contesting the accuracy of his data, while from the response of the respondent dated ... it appears that the relevant request of the complainant was not answered. However, from the entirety of the file, it appears that the complainant, although contesting the accuracy of the data, did not provide the respondent with the exact data, so that

verification could take place under Article 18(1)(a) of the GDPR. Furthermore, given that the right to restrict processing under Article 18 of the GDPR was exercised in conjunction with the right to object under Article 21 of the GDPR, the Authority finds the respondent's claim, as presented in the memoranda G/EIΣ/8030/16-06-2022 and G/EIΣ/1005/09-02-2023, to be lawful, that there is no case for the application of the right to restriction, which aims at a kind of temporary protection, which may be exercised as a supplementary measure in the exercise of the rights of rectification, erasure, and objection, and thus, in this case, since, as stated above, the processing took place based on Article 6(1)(c) of the GDPR, there is no case for the application of the complainant's right to restriction pending the balancing of the respective interests under Article 21 of the GDPR.

12. However, according to Article 12 of the GDPR: "1. The controller shall take appropriate measures to provide the data subject with all information referred to in Articles 13 and 14 and any communication in the context of Articles 15 to 22 and Article 34 regarding processing in a concise, transparent, intelligible, and easily accessible form, (...) 3. The controller shall provide the data subject with information on the action taken in response to a request under Articles 15 to 22 without undue delay and in any event within one month of receiving the request. The said period may be extended by two further months, if necessary, taking into account the complexity and number of requests."

15. It is required, taking into account the complexity of the request and the number of requests. The data controller informs the data subject of the extension within one month from the receipt of the request, as well as the reasons for the delay. If the data subject submits the request by electronic means, the information is provided, if possible, by electronic means, unless the data subject requests otherwise.

4. If the data controller does not act on the request of the data subject, the data controller informs the data subject without delay and no later than one month from the receipt of the request, of the reasons for not acting and of the possibility of lodging a complaint with a supervisory authority and exercising a judicial remedy. As determined by the Authority (APDPX 15/2019), in the event of an inability to respond immediately and satisfy the request of the data subject, the data controller must, within one month from the receipt of the request, inform the data subject of the inability to respond immediately and satisfy their request as well as the reasons for the delay, requesting further extension of the deadline in accordance with Article 12 paragraph 4 of the GDPR. In this case, as previously mentioned, the complainant first exercised the rights of restriction and objection with their letter dated ..., receiving a response from the respondent on Therefore, a delayed response to the complainant's requests is established in violation of the aforementioned relevant provisions, as the respondent's reply exceeds the response deadlines set by the provisions of Article 12 paragraphs 3, 4 of the GDPR, since no response was provided within one month from the receipt of the complainant's request.

13. Because, according to the immediately preceding considerations, from the elements of the file, and those that emerged from the hearing process, the Authority finds that there has been a violation of the obligations of the data controller based on Article 12 paragraphs 3, 4 of the GDPR, in relation to which the Authority finds that there is a case to exercise its corrective powers under Article 58 paragraph 2 of the GDPR.

14. Furthermore, the Authority, for the determination of the sanction, took into account the criteria for measuring the fine set out in Article 83 paragraph 2 of the GDPR, in conjunction with paragraph 5(b) of the same article, which are applicable in the present case, considering the Guidelines 04/2022 on the calculation of administrative fines under the GDPR of the European Data Protection Board, as well as the Guidelines for the application and determination of administrative fines for the purposes of Regulation 2016/679, of the Article 29 Working Party. Based on the above, the Authority unanimously decides that a sanction should be imposed on the respondent, as the data controller, for the aforementioned established violation, as referred to in the operative part of this administrative sanction, which is deemed proportionate to the severity of the said violation.

FOR THESE REASONS

The Authority

finds a violation of Article 12 paragraphs 3-4 of the GDPR and issues a reprimand under Article 58 paragraph 2(b) of the GDPR to the respondent National and Kapodistrian University of Athens, for the reasons extensively analyzed in the reasoning of this decision.

The President

Konstantinos Menoudakos

The Secretary

Irini Papageorgopoulou

11 Available at: https://edpb.europa.eu/system/files/2024-01/edpb_guidelines_042022_calculationofadministrativefines_el_0.pdf

12 Available at: https://www.dpa.gr/sites/default/files/2019-12/wp253_el.pdf